

direction that such appointment should take place as often as any one or more of the trustees should die, &c. One of the trustees died, and it was determined by the Court of Queen's Bench, that the *survivors* alone were incapable of exercising the power. Lord Eldon was dissatisfied with this decision, and asked, "Did the Court of Queen's Bench consider that the two surviving trustees and *the heir of the deceased trustee*, were to act together? for it was one thing to say that the survivors could not act *until another was appointed*; and a different thing to say, the *heir* of the deceased trustee could act in the meantime" (*c*). But his Lordship so far bowed to the authority of the decision, that he refused under similar circumstances to compel a purchaser to accept the title (*d*). In *Townsend v. Wilson* the trustees had not the *fee*, and the power was not to be executed as part of a trusteeship, and it is therefore no authority against the execution of a *trust* by the surviving trustees. Indeed, where an estate was devised to three trustees and their *respective* heirs, upon trust that they and their *respective* heirs should sell, the word "respective" was rejected for surplusage, and it was held that the survivors could make a title (*e*).

2. *Hewett v. Hewett*. — In *Hewett v. Hewett* (*f*), a testator devised his estate to four persons to uses in strict settlement, with a power to the tenants for life, when in actual possession, to cut such trees as the *four devisees to uses, or the survivors or survivor of them* (omitting the words "and the heirs of the survivor") should direct; and all the trustees being dead, the question was whether the power was gone. Lord Henley held, that, upon the construction of the will, the testator intended the power to be co-extensive with the life estates, and that the trustees were interposed, as supervisors only to prevent destruction; and that the office [*603] of the trustees was not personal, but such * as might be executed by the Court. He, therefore, considered

(*c*) *Hall v. Dewes*, Jac. 193; and see *Jones v. Price*, 11 Sim. 557.

(*d*) *Hall v. Dewes*, Jac. 189.

(*e*) *Jones v. Price*, 11 Sim. 557.

(*f*) 2 Eden, 332, Amb. 508; and see *Bennett v. Wyndham*, 23 Beav. 528.